

The State Through vs Jayabharath Reddy on 1 February, 2023

KABC030034722019

Presented on : 16-01-2019
Registered on : 16-01-2019
Decided on : 01-02-2023
Duration : 4 years, 0 months, 16 days

IN THE COURT OF THE XXXII ADDL.CHIEF
METROPOLITAN MAGISTRATE, AT BENGALURU

PRESENT

SMT.LATHA .J, B.COM, LL.B.,
XXXII Addl.C.M.M, Bengaluru

Dated this the 1st day of February 2023

C.C.No.131/2021

Complainant : The State through
Police Inspector,
Madiwala Police Station,
Bengaluru.
(By Asst. Public Prosecutor)

--- V/s ---

Accused : Jayabharath Reddy
S/o Surendranatha Reddy,
Aged about 34 years,
R/at:544, 1st Main,
Teachers Colony,

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C.C.No.19408/2017

Venkatapura,
Bengaluru.

(By Sri. MAM Adv.,)

Date of commencement of : 5/12/2014 and 23/7/2018
offence.

Date of report of offence. : 30/7/2018

Arrest of the Accused. : ---

Name of the Informant : C. Shravya Reddy

Date of commencement of recording evidence. : 20/1/2023

Date of closing of evidence. : 20/1/2023

Offences complained of : U/Secs.498(A), 504 of IPC and Sec. 3 and 4 of D.P.Act

Opinion of the Judge. : Accused is found not guilty

Date of Judgment : 1/2/2023

XXXII Addl.C.M.M
Bengaluru.

JUDGMENT

The Police Inspector, Madiwala P.S has submitted the Charge Sheet against the accused for the offences punishable Under Secs.498 (A), 504 of IPC and Sec.3 and 4 of D.P.Act.

2. The brief facts of the Prosecution case are as follows:

That the accused married C.W.1 on 5/12/2014 as per Hindu customs and rites. At the time of marriage the accused demanded and received golden ornaments and cash of Rs.17,00,000/- as dowry from the parents of CW1 and after the marriage while CW1 was residing with the accused at matrimonial home and that on 23/7/2018 at 12-30 pm the accused harassed CW1 for small reasons abused in filthy language and assaulted with hands and physically and mentally for bringing additional dowry Rs.20,00,000/- and the accused abused C.W.1 in filthy language and assaulted with hands knowingly that it would give provocation to C.W.1 to breach public peace and thereby the accused has committed the offences punishable U/Sec. 498(A), 504 of Indian Penal Code and U/s. 3 and 4 of D.P.Act.

3. On the basis of the Statement of CW1, the Madiwala Police have registered a case under Crime No.301/2018 for the offences punishable U/Secs.324, 420, 498(A), 504, 506 r/w 34 of IPC and 3 and 4 of D.P.Act against the accused and submitted the FIR before the court. Thereafter

investigating officer visited the spot and drawn the spot mahazar and recorded the statement of witnesses and on completion of the investigation, the Charge Sheet has been filed against the accused for the offence punishable Under Secs.498(A), 504 of IPC and U/Sec.3 and 4 of D.P.Act. On the receipt of police report this court has taken cognizance for the said offences.

4. The accused obtained anticipatory bail. On the appearance of the accused, the copies of prosecution papers were furnished to the accused as contemplated U/Sec.207 of Cr.P.C. After hearing both the parties, the charge was framed against the accused and read over to him. The accused pleaded not guilty and claimed to be tried. Hence, the matter was posted for evidence.

5. In order to bring home the guilt of the accused, the prosecution has got examined one witness as PW1 and got marked two documents as per Ex.P1 and P2 with sub- markings. Since PW-1 who is the material witness, has turned hostile to the case of the prosecution and the presence of rest of the material witnesses could not be secured and since there is no incriminating evidence against the accused from the material witnesses, no purpose would be served by issuing summons to rest of the witnesses. Hence, the evidence of rest of the witnesses is dropped by rejecting the prayer of the learned Assistant Public Prosecutor. The statement of the accused as required Under Sec.313(1)(b) of Cr.P.C was dispensed with as there was no incriminating circumstances in the evidence of prosecution witnesses.

6. I have heard the arguments addressed by the learned Assistant Public Prosecutor and learned advocate for the accused.

7. On going through the facts and circumstances of the prosecution case, the following points would arise for my consideration:

POINTS

1. Whether the prosecution proves beyond all reasonable doubt that the accused married C.W.1 on 5/12/2014 as per Hindu customs and rites. At the time of marriage the accused demanded and received golden ornaments and cash of Rs.17,00,000/- as dowry from the parents of CW1 and thereby the accused has committed the offences punishable U/sec. 3 and 4 of Dowry Prohibition Act?

2. Whether the prosecution proves beyond all reasonable doubt that after the marriage while CW1 was residing with the accused at matrimonial home and that on 23/7/2018 at 12-30 pm the accused harassed CW1 to small reasons abused in filthy language and assaulted with hands and physically and mentally for bringing additional dowry Rs.20,00,000/- thereby the accused has committed the offence of "subjecting C.W.1 to cruelty" punishable U/Sec.498(A) of IPC?

3. Whether the prosecution proves beyond all reasonable doubt that the accused abused C.W.1 in filthy language and knowingly that it would give provocation to C.W.1 to breach public peace and thereby the accused has committed the offence of

"intentional insult" punishable U/s 504 of IPC?

4. What Order?

8. My findings to the above Points are as under:

Points No.1 to 3	: In the Negative.
Point No.4	: As per final order for the following: -

REA S ON S

9. Points No.1 to 3 :- As these points are inter linked with each other and also similar evidence is led on all these points, I have taken all these points together for common discussion in order to avoid repetition of facts and discussion.

10. It is an allegation that the accused has committed the offences punishable U/Secs.498A, 504 of IPC and Sec. 3 and 4 of D.P.Act.

11. In order to prove its case, prosecution has got examined informant of crime/C.W.1 by name Shravya Chinnu as P.W.1, Out of the documents marked for the prosecution Ex.P1 is the complaint, Ex.P2 is the spot mahazar.

12. PW1 has deposed in her evidence that her marriage was solemnized on 5/12/2014 and the accused has not demanded any dowry prior to marriage or after marriage and her parents have not given dowry to accused. She further deposed that the accused has not given physical and mental cruelty towards her. She has further deposed that she has not lodged a complaint against the accused. She deposed that police took her signatures on blank paper. Further, she has also deposed that she does not know the contents of Ex.P.1-Complaint and Ex.P.2-Mahazar. The police have not drawn mahazar in her presence.

13. The P.W.1 being prime witness turned fully hostile to the case of prosecution. In the lengthy cross examination of PW.1 made by learned Sr.A.P.P, Nothing worth has been elicited from her mouth to support the case of the prosecution. In the cross examination by Learned A.P.P. she deposed that she has compromised the matter with the accused.

14. Now on over all perusal of the evidence and prosecution witnesses, the complainant/PW-1. PW-1 is the material witness has not supported the case of prosecution. PW-1 prime witness denied the entire case of prosecution and also turned hostile to the case of the prosecution. The PW-1 during the course of her evidence has not at all stated in respect of dowry harassment by the accused and she denied the involvement of the accused and at the out set she denied the entire case of the prosecution. However, the learned Assistant Public Prosecutor prays to issue summon to other witnesses. Having considered the facts and circumstances of this case, this court was of the opinion

that even if other witnesses were examined, it would be a futile exercise and no lawful purpose would have been served. As such examination of the prosecution witnesses only for the purpose of completing the procedural aspect and will not serve any judicial purpose and it is sheer waste of the precious time of the court. Therefore, the prayer of the learned APP to issue summons to other witnesses was rejected. At this stage this court relied upon judgment delivered by the Hon'ble Supreme Court in 1996 (3) Crimes 84 Sathish Mehra V/s Delhi Administration & another:

wherein at page No.13 the Hon'ble Apex Court held as follows:

"When the judge is fairly certain that there is no prospect of the case ending in conviction the valuable time of the court should not be wasted for holding a trial only for the purpose of formally completing the procedure to pronounce the conclusion on the future date".

15. The principle of law laid down by the Hon'ble Supreme Court in the above case is applicable in this case also. Considering the facts and circumstances of the present case, it is clear that the prosecution has failed to prove the guilt of the accused beyond all reasonable doubts. Under these facts and circumstances of the case, the above Points No.1 to 3 is answered in the 'NEGATIVE'.

16. Point No.4: - In view of the findings of point No.1 to 3, this court proceed to pass the following;

ORD ER Acting U/Sec.248(1) of Cr.P.C.

accused is acquitted of the offences punishable U/Secs.498A, 504 of IPC and Sec. 3 and 4 of D.P.Act.

Bail bonds and Surety bonds shall stand cancelled.

Sec.437(A) of Cr.P.C., has been complied. (Dictated to the Stenographer on-line and typed by her, judgment corrected and signed by me, then pronounced by me in the Open Court on this the 1/2/2023).

(Latha J.), XXXII A.C.M.M, Bengaluru .

ANNEXURE List of the Witnesses examined by the Prosecution:

PW-1 Shravya Chinnu C.W.1 20/1/2023 List of the Documents exhibited for the Prosecution:

Ex.P1	:	Complaint
Ex.P1(a)	:	Signature of PW-1
Ex.P2	:	Mahazar
Ex.P2(a)	:	Signature of PW-1

List of the MOs marked on behalf of the Prosecution:

--Nil--

List of the Witnesses examined for defence:

--Nil--

List of the Documents exhibited for defence:

--Nil--

List of the MOs marked on behalf of Defence:

--Nil--

XXXII A.C.M.M, Bengaluru.